

#	Case Name	Tentative
	2023-01339723	Moving parties shall separately electronically file and serve the proposed Second Amended Complaint (Ex. A to moving papers), within five days. Separate e-filing is required to ensure the pleading is properly indexed in the court's electronic filing system. The trial date is continued to October 26, 2026 at 9:30 a.m. in Department C28. Discovery is to remain open based on the new trial date. The court considered the late-filed opposition and reply. Moving parties shall give notice of this ruling.
53.	Bialas v. General Motors LLC 2025-01489084	Plaintiff Michael Robb Bialas's motion for attorney fees and costs is GRANTED in the total amount of \$12,424.90, consisting of \$10,868.50 in attorney fees and \$1,556.40 in costs. (See Civ. Code, § 1794, subd. (d).) <u>Attorney fees.</u> There is no dispute that plaintiff is the prevailing party in this action for purposes of attorney fees and costs. (See Civ. Code, § 1794, subd. (d); <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 1259-1264; see also Kay Decl. ¶¶ 13-14; Morrow Decl. ¶ 7; Mtn. Memo. P&As at p. 1.) Further, defendant does not challenge the reasonableness of the rates charged. The court finds that all of the hours claimed were reasonably incurred in conduct of this litigation, contrary to defendant's contentions. (See Morrow Decl. ¶ 8, Ex. 1 [time records].) As for the time requested to take the deposition of defendant's PMK, defendant's recitation of events is incomplete. On 11/6/25, the day after the PMK deposition, plaintiff's counsel (1) spoke with their plaintiff "re settlement/acceptance," and (2) informed defendant that plaintiff would accept their offer to repurchase the vehicle. (Morrow Decl. at Ex. 1 [11/6/25 entries]; Kay Decl. ¶ 12.) The final settlement breakdown and formal release and settlement agreement came much later, and plaintiff did not execute the settlement and release until 1/26/26. (Kay Decl. ¶ 14; see Morrow Decl. at Ex. 1 [11/2025-1/2026 entries].) As such, plaintiff was entitled to take the PMK deposition when he did and did not act unreasonably in proceeding with it. It is not uncommon for settlement negotiations to fall through, and plaintiff was not required to continue the deposition merely because the parties were contemplating settlement.